



File No.: EXP202309862

RESOLUTION OF RIGHTS PROCEDURE

Once the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD) have been carried out, the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant) exercised the right to erasure against LUCRIN SPAIN, S.L. (hereinafter, the respondent) without his request receiving the legally established response. The claimant states that on February 10, 2021, he sent a request for data erasure to the respondent entity, sending his request through the email address listed in the privacy policy of the respondent entity, without having received a response within the legally established timeframe.

SECOND: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent has indicated that "No request has been received from the claimant, either virtually or physically, therefore, taking advantage of this request from the AEPD, we kindly ask you to send proof/justification of receipt and content of the request made by the claimant.

(...) According to the information that the AEPD has kindly sent us in the form of an annex to this file, the claimant is addressing the email address privacy@lucrin.com, which is owned by the company Lucrin AG, based in Geneva, Switzerland, a company different from the one to which the Agency has addressed and which the claimant wishes to address, Lucrin Spain SL.

This indicates that the claimant has attempted to contact the company Lucrin Spain SL using the information provided to users located on the website www.lucrin.com, which expressly states that the address privacy@lucrin.com is specifically for user data generated through the use of the online store and/or its applications.

The channels through which the company Lucrin Spain SL manages this type of requests are quite different: either by email to one of these three email addresses:

- USUARIO.1@lucrin.com
- info@lucrin.com
- recursos.humanos@lucrin.com

Or by postal mail to the address, ***ADDRESS.1. And this is expressed and communicated in our data protection policy."

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on August 17, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, so that within ten working days it could present the allegations it deemed appropriate, reiterating, in summary, the allegations already presented previously.

"Without prejudice to the above points, it is noteworthy that the claimant did not seek the support of the AEPD until more than two complete years (28 months) after the communication period cited in his request, having received no response.

Without prejudice to the above, it is noteworthy that the claimant's document is not signed, so if he had correctly channeled his complaint, his identity could not have been verified.

Without prejudice to the above points, it is noteworthy that the claimant's document states that an ID is attached. However, the attached document is a copy of what appears to be an identification as (...), a copy of a document not issued by the FNMT-RCM, which is the authorized body in Spain to issue official and legal documentation that recognizes the identity of individuals."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within ten working days, he may formulate the allegations he considers appropriate,

summarizing, in essence, the following allegations:

"1. The request for data erasure was sent to the address that was listed on the respondent's website for this purpose.

2. I have sought the protection of the AEPD when I deemed it appropriate, and the respondent cannot argue that twenty-eight months have passed since I made the request for data erasure.

3. If my document was not signed, the respondent should have requested that I rectify the document in which I requested the erasure of personal data.

4. The ***POSITION.1 card is a valid document for identifying me according to the Organic Law of the Judiciary."

FIFTH: After granting a hearing to the respondent, it states, in summary, that:

"We reiterate that the claimant has not contacted the appropriate company for the purpose he desires, the erasure of his personal data. This should have been done by...

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addressed to the email addresses available to Lucrin Spain SL. and previously discussed in earlier responses: (...) Or by postal mail to the address, (...) As expressed and communicated in our data protection policy.

On the other hand, it has been directed to an email address of another company and for another purpose (Lucrin AG based in Geneva, Switzerland)."

Regarding the time taken by the respondent to respond, "We reiterate that we understand that the twenty-eight months that have passed until the request for support from the AEPD is a long time to manage something so important for the complainant."

On the statements made by the complainant that if their submission was not signed, they should have been asked to rectify it, "(...) The signature of the complainant unequivocally identifies them legally, indicating acceptance in the consolidation of the content of the document, authorizing, consenting to, and approving it.

The request lacks a signature, rendering the document devoid of representative validity, and it could have been completed by any other individual. The documentation must be verified before submission, ensuring both substance and form."

In relation to "(...) the ***POSITION.1 card is a valid document for identifying me as established by the organic law of the judiciary"

We reiterate that it is the FNMT-RCM, the designated and authorized body in Spain to enable official and legal documentation that recognizes the identity of individuals.

This designation aims to generate the identification of individuals, protecting them from fraud and forgery, thereby guaranteeing data protection by assigning modern security and quality elements as stated on its website.

The documents designated for identifying individuals in Spain are:

- The National Identity Document
- The Foreigner's Card
- The Driving License
- The Spanish Passport
- The "Schengen" Visa
- The EU Residence Permit
- Travel Documents"

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU)

2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by an interested party and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and to demonstrate that they had provided the complainant with the appropriate response.

The result of this forwarding did not allow for an understanding that the claims of the complainant were satisfied. Consequently, on August 17, 2023, for the purposes provided for in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure for failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of the

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Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the agreement of admission was notified to the claimant. After this period, the interested party may consider their claim accepted.

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of remedying any infringement of the GDPR, including "ordering the data controller or processor to address requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party falls on the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase such personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the data controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the data controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the data controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), in so far as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise or defense of legal claims."

V

Conclusion

In the present case, the complaining party requested the erasure of their personal data from the responding party, without receiving a response.

During the processing of this procedure, the responding party has stated, in summary, that it has not received the exercise of the right, as the complaining party directed it to a different entity. Furthermore, the request provided is not found.

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signed and the document provided to verify their identity is not valid for that purpose.

“(…) According to the information that the AEPD has kindly sent us in the form of an annex to this file, the complainant is addressing the email address privacy@lucrin.com, which is owned by the company Lucrin AG, based in Geneva, Switzerland, a company different from the one the Agency has addressed and the complainant wishes to address, Lucrin Spain SL.

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Or by postal mail to the address, ***ADDRESS.1. And this is expressed and communicated in our data protection policy.”

Regarding the statements that a complaint has been made against a different company, this Agency has verified that on the website of the party, in the “Data Protection Statement,” it states that “This confidentiality statement made by Lucrin.es, a service of Lucrin SA, establishes how the companies of the Lucrin group —Lucrin SA, Lucrin Spain SL, Lucrin Mauritius Ltd, Lucrin Hong Kong Ltd, Lucrin USA, Lucrin India Ltd, Lucrin UK Ltd, and Lucrin Japan, hereinafter collectively referred to as “we”— process your data, whether during the use of our Internet websites and our mobile applications (hereinafter, “digital services,” “websites,” or “portal”).”

“(…) You may also, at any time, correct, block, or delete your personal data by informing us in writing, with proof of your identity, at the following address: Privacy@lucrin.com”

Therefore, it can be concluded that the complaining party sent their exercise of rights to the email address indicated by the responding party.

The aforementioned rules do not allow the request to be overlooked as if it had not been made, leaving it without the response that the responsible parties are obliged to issue, even in the event that there are no data in the files or even in those cases where the requirements set forth are not met, in which case the recipient of such request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

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In this regard, it is necessary to take into account the provisions of Article 12.6 of the GDPR, which states that “Without prejudice to the provisions of Article 11, when the data controller has reasonable doubts concerning the identity of the natural person making the request referred to in Articles 15 to 21, they may request that additional information be provided to confirm the identity of the data subject.”

Therefore, the request made obliges the data controller to provide an express response in all cases, using any means that justifies the receipt of the response.

Consequently, given that the necessary justification for the receipt of the response by the claimant party informing them about the decision made regarding the exercise of rights request is not provided, it is appropriate to uphold the complaint that initiated this procedure.

Moreover, even in the event that it is not submitted through the provided channel or at the corresponding office, the receiving body must forward the request received to the assigned Data

Protection Officer or to the department responsible for managing such requests.

Furthermore, although it is appropriate for such a request to be addressed to the address declared by the data controller for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 or to the central office, it is considered that the receipt of the request by any department or branch of the data controller is a valid destination for the same, in accordance with Article 12 of the LOPDGDD, which states:

“The data controller shall be obliged to inform the affected party about the means available to exercise the rights that correspond to them. The means must be easily accessible for the affected party. The exercise of the right may not be denied solely on the grounds that the affected party has opted for another means.”

In light of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Mr. A.A.A. considering that the provisions of Article 17 of the GDPR have been infringed and to urge LUCRIN SPAIN, S.L. with NIF B72280415, to, within ten working days following the notification of this resolution, send to the claimant party a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to LUCRIN SPAIN, S.L.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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